

Needed: A Strong Moral Fibre

Rid the justice system of political leaders and make investigations independent

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People have lost faith in the criminal justice system. They feel that the rich and powerful will use clout, political power and money to exploit the loopholes in the system. Many also feel that the system does not function properly because it is lethargic and time consuming.

It is a basic human nature to retaliate, which is why a civilised justice system came into being. The idea behind establishing such a system was to counter man's basic instinct of revenge and instant justice and reassure him that the system will take care of the aggrieved and, with the evidence collected, will punish the accused. But when this does not happen, at the speed and in a manner that the victim wants, the natural instinct is back at play. Such a development does not bode well for society. This is what is currently happening in the country as more and more people try to seek justice.

There is also an increasing trend of savagery and people are becoming more violent and cruel, not hesitating to indulge in gruesome acts. Even in an affluent, civilised society, people resort to all kinds of violence—either because of greed or because they want to satisfy their carnal urges. It is an “I don't care attitude” which seems to have become a global phenomenon. Just look at the shootings in the United States where a 20-year-old policeman killed six teenagers in a remote Wisconsin state town called Crandon. The police shot dead the killer who had also killed his estranged girlfriend. Closer home, we have had a rash of incidents in which people have resorted to violence and taken the lives of others, including innocents. In Bangalore, a 32-year-old hotel owner was murdered in a tiff over food. According to the police, 24-year-old Srinivas Murthy went to a hotel and demanded food. As it was time to close, hotel owner Sudhir Kumar asked Murthy to leave which led to a quarrel. The next day Murthy, along with five accomplices, attacked Kumar with clubs and wooden sticks injuring him grievously. Kumar was rushed to the hospital where he succumbed to his injuries.

The entire criminal justice system needs to be revamped to make it more efficient and for that, it should be free of the control of our political leaders. One often hears these days of politicians' involvement in crime or their dependence on criminals. The system, therefore, has to be insulated from politicians. Investigations also should be handled by an independent professional body, with no political allegiance, in

the same manner that judges are not accountable to political masters. Unfortunately, promotions and even transfers of investigating officers depend upon our political leaders who are liable to be biased.

Our investigating agencies have to be more efficient and professional and they should use modern, forensic scientific methods. Investigations should be independent and autonomous. This is necessary as criminals today are intelligent, use sophisticated equipment and plan their acts meticulously. There is always competition between the law breaker and the law enforcer, where the enforcer generally is weak and less efficient which leaves the law breaker with the upper hand.

In early 2003, the Committee on Reforms of Criminal Justice System submitted its report to the government with comprehensive recommendations like making the quest for truth the guiding star of the entire criminal justice system and replacing ‘proof beyond reasonable doubt’ in the Indian Evidence Act with ‘clear and convincing standard of proof’. Despite a big debate on the recommendations, not much has been implemented.

Ironically, violence in society is taking place at a time when there is an increased focus on human rights, equity and justice. The United Nations 1948 declaration of human rights was followed by many commissions on human rights which have created much awareness. Still there has been a phenomenal rise in crime, even rise in cruelty. Criminals have become brutish and are willing to go to any length to commit a crime and against anyone. Even crime against children has gone up. Earlier, religion and moral values used to play a significant role in



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containing these animal instincts. Now, it seems even our existing laws, which should act as a deterrent, have failed to stop criminals.

Maybe it is time that we looked at bringing in a higher moral law to regulate our inner workings. A strong moral fibre may be successful in regulating our lives as the existing legal and administrative system is not being properly followed. We need to look within and see how we can police ourselves instead of putting in all our energies into the existing criminal justice system.

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